CHAPTER 69 Bar Council of India

Establishment

The Bar Council of India (BCI) was established under a legislation enacted by the Parliament, namely, the Advocates Act, 1961. Hence, it is a statutory (and not a constitutional) body.

In 1951, the Government of India appointed an All India Bar Committee under the chairmanship of Justice S.R. Das of the Supreme Court. The mandate of the committee was to examine and report on the issue of re-organisation of the Bar and legal profession in the country. The committee submitted its report in 1953. It recommended, inter alia, the establishment of an All India Bar Council and State Bar Councils (SBCs) to regulate legal profession at the national and state level.

Later, in 1958, the Law Commission of India[1] again repeated and endorsed the above recommendation of the Das Committee. Consequently, the Advocates Act, 1961 was passed by the Parliament to provide for, inter alia, the creation of the BCI and SBCs.

The BCI is an autonomous body. It works under the Department of Legal Affairs of the Union Ministry of Law and Justice[2].

COMPOSITION

The BCI consists of the elected members as well as the ex-officio members. They are as follows:

1. One member elected by each SBC from amongst its members.
2. The Attorney-General of India and the Solicitor-General of India are the ex-officio members.

The BCI shall have a Chairman and a Vice-Chairman. They are elected by the Council from amongst its members. They hold office for a period of two years.

The term of office of a member of the BCI, elected by a SBC, shall be for the period for which he/she holds office as a member of that SBC.

The BCI consists of the following committees:

1. Disciplinary Committee (one or more)
2. Legal Aid Committee (one or more)
3. Executive Committee
4. Legal Education Committee
5. Other Committees (if necessary)

Functions

The functions of the BCI are as follows:

1. To lay down standards of professional conduct and etiquette for advocates